AGREEMENT AND PLAN OF MERGER — SKELETON / DNP + OMITTED (STRESS FIXTURE 03)

This Agreement and Plan of Merger (the "Agreement") is made between BuyerCo Inc. ("Buyer") and TargetCo Inc. ("Target").

1. THE MERGER

Target shall merge with and into Buyer pursuant to Section 251 of the Delaware General Corporation Law, with Buyer continuing as the surviving corporation. At the Effective Time, all liabilities of Target shall vest in the surviving corporation by operation of law. (Structure is unambiguous: statutory merger.)

2. PURCHASE PRICE

The total purchase price shall be $50,000,000, payable in cash at Closing.

3. DUE DILIGENCE

Buyer accepts the business "as is, where is," and confirms that no further information is required from Target. Buyer waives any recourse for matters discoverable through diligence. [Present, adverse: as-is waiver.]

4. INDEMNIFICATION

There shall be no indemnification under this Agreement. Buyer accepts all liabilities of Target, known and unknown. [Present, adverse: affirmative liability assumption with no recourse.]

5. TERMINATION

Seller may terminate this Agreement at any time prior to Closing for convenience. Buyer may terminate only upon a final judicial determination of Seller's fraud. [Present, adverse: asymmetric termination.]

6. EMPLOYEES

All employees shall be retained for thirty (30) days post-Closing.

7. GOVERNING LAW

This Agreement is governed by the laws of the State of Delaware.

The following standard provisions are not addressed in this Agreement: representations and warranties; defined terms / definitions section; working capital adjustment; Material Adverse Effect; escrow or holdback; survival of claims; schedules and exhibits. [These are genuine omissions — absent, not adversely allocated.]

IN WITNESS WHEREOF, the parties have executed this Agreement.

Buyer Co: _____ Target Co: _____